

You can seek a review of certain decisions under the [Imported Food Control Act 1992](#). The decisions that can be reconsidered are listed in [subsection 42\(2\) of the Act](#).

Contact the Food Safety Manager in your state or territory about your concerns with the initial decision outcome, before submitting an application for a review. Contact details are included in the Imported Food Inspection Advice you received.

A reconsideration of the initial decision determines whether it is legally correct. For example, if the decision to fail a food was made correctly against the legal requirements. An application to reconsider a decision must be submitted within 28 days after you were notified of that decision.

How to apply

Your written application must be sent to the Imported Food Director, within 28 days from the date you first received notice of the initial decision.

Your application should identify the decision you are asking us to reconsider. Include the reasons why you believe the decision is incorrect. It will help us if you make specific reference to one or more of the initial decisions listed in subsection 42(2) of the Act.

You will be sent a written notice of the outcome of the review within 28 days from the date we receive your application.

Submit your application to the Director, Imported Food by:

Email: foodimp@aff.gov.au

Post:

Director, Imported Food
Department of Agriculture, Fisheries and Forestry
GPO Box 858
Canberra ACT 2601

Applying to the Administrative Review Tribunal (ART)

If your interests are affected by the outcome of the review of the initial decision, you may apply to the ART for a review. This review can only take place after the department's review of the initial decision has been completed.

Source: <https://www.agriculture.gov.au/biosecurity-trade/import/goods/food/inspection-testing/decision-review>